

UPSC GS-II POLITY

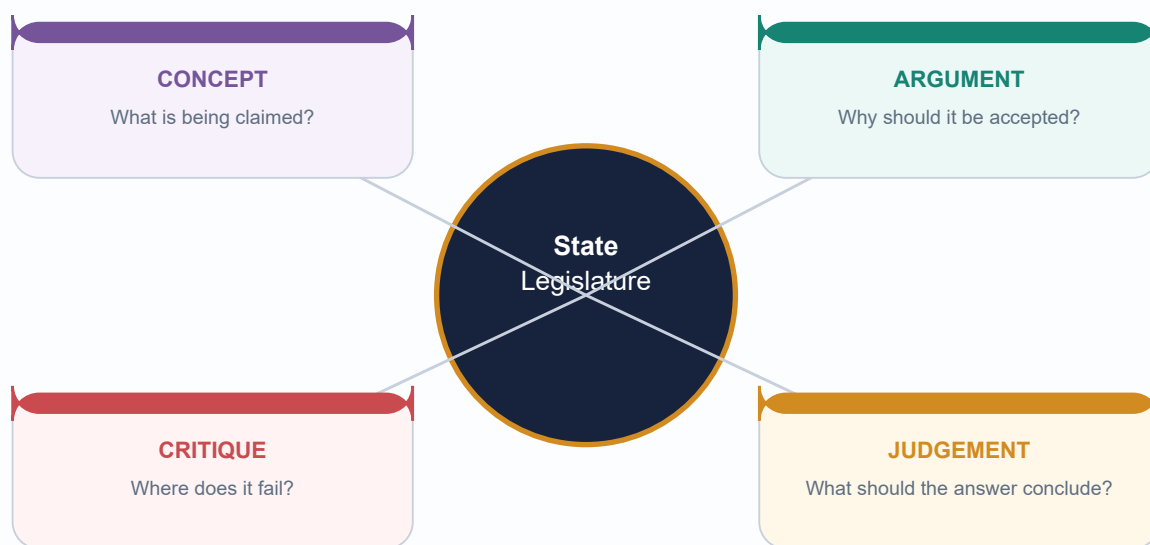
State Legislature

Integrated Basic + Advanced Course

11 deep-learning modules | Articles 168-212

Institutional maps, procedure flows, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (Laxmikant Ch. 33)



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. One Legislature, Two Models: Unicameral vs Bicameral

GS-II Polity -
State Legislature

NEWS TRIGGER

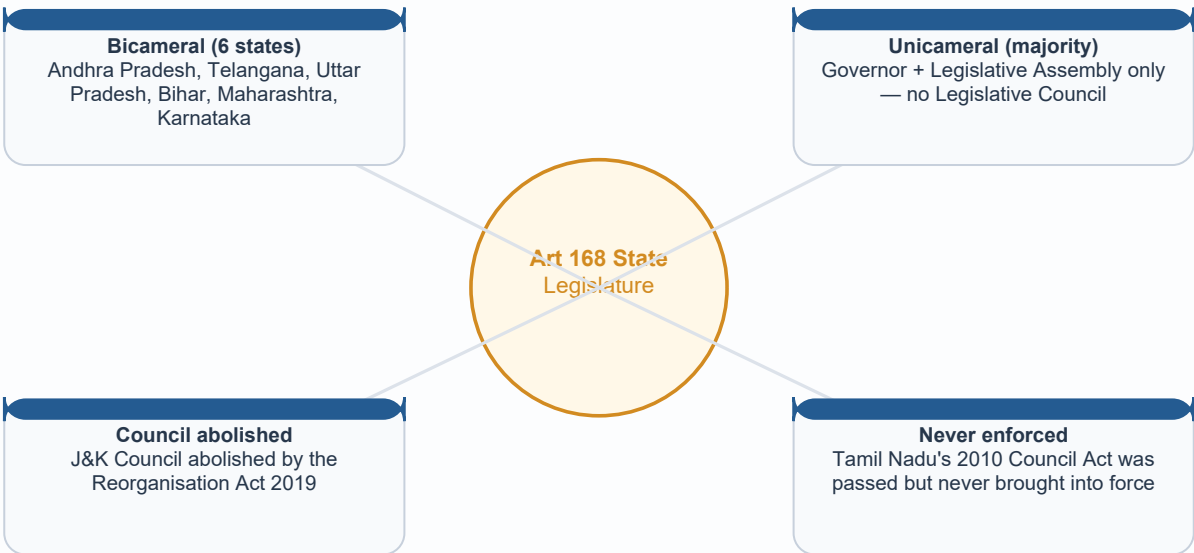
Whenever a state assembly debates creating or abolishing its upper house, the unicameral-bicameral choice under Articles 168-169 returns to the news.

INTRO & ORIGIN

Article 168 lets a state have either a single House (Legislative Assembly) or two Houses (Legislative Council + Legislative Assembly). Most Indian states choose the simpler unicameral model.

The Constitution does not force uniformity — it leaves the choice of a second chamber to each state, unlike Parliament's fixed bicameral structure.

WHICH STATES ARE BICAMERAL TODAY



KEY DATA

Item	Legislative Assembly (Vidhan Sabha)	Legislative Council (Vidhan Parishad)
Nature	Lower / popular, directly elected	Upper, indirect + nominated, permanent
Strength	Normally 60-500, with special constitutional/statutory exceptions for smaller states	Max 1/3 of Assembly, min 40
Term	5 years, dissolvable (like Lok Sabha)	Permanent body, 1/3 retire every 2 years (like Rajya Sabha)
Articles	168-212	168-212

STATIC THEORY

- A Council can be created or abolished under Article 169 by Parliament acting on the state's own request — this is not a constitutional amendment under Article 368.
- Only 6 states currently run the bicameral model; the rest govern through a single Assembly.

MEMORY HOOK

KATBUM = Karnataka, AP, Telangana, Bihar, UP, Maharashtra — the 6 bicameral states.

MUST-KNOW FACTS

1. 6 states are bicameral: AP, Telangana, UP, Bihar, Maharashtra, Karnataka.
2. J&K's Legislative Council was abolished by the J&K Reorganisation Act, 2019.
3. Tamil Nadu's 2010 Act to revive its Council has never been enforced.
4. A Council's existence is optional and reversible, unlike the Rajya Sabha.

UPSC TRAPS

WRONG: All Indian states have a Legislative Council.

CORRECT: Only 6 states are bicameral; the rest are unicameral.

WRONG: A state's bicameral status, once fixed, cannot change.

CORRECT: Councils have been created, abolished and revived (e.g. AP 1957 -> 1985 -> 2007) under Article 169.

MAINS ANGLE

Use the unicameral-bicameral choice to illustrate that Indian federalism grants states institutional flexibility in internal design, unlike the rigid bicameralism mandated for Parliament.

STUDY LINK

Polity -> Parliament -> Bicameralism |
Federalism -> Design choices

HIGH

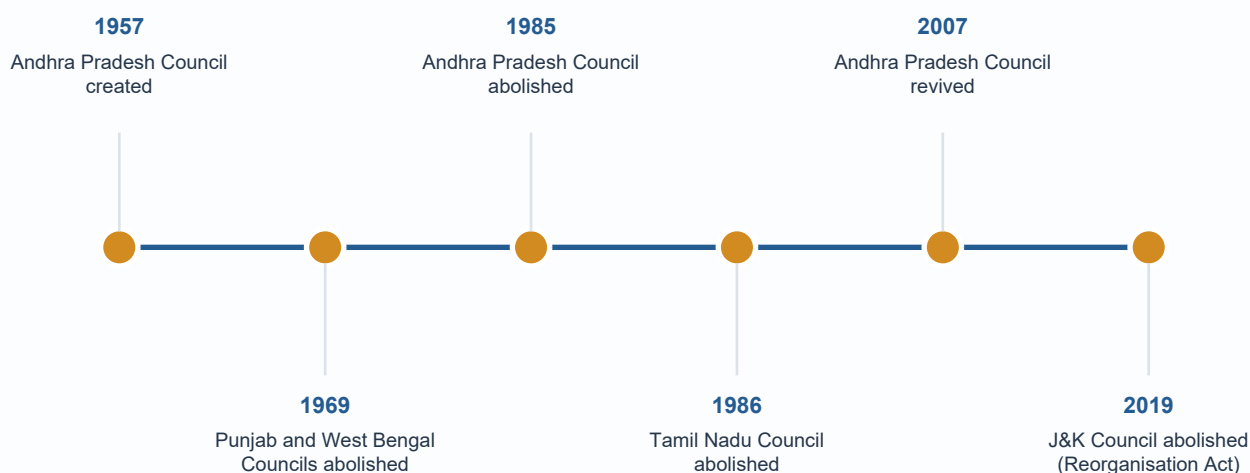
2. Article 169: Creating or Abolishing a Legislative Council

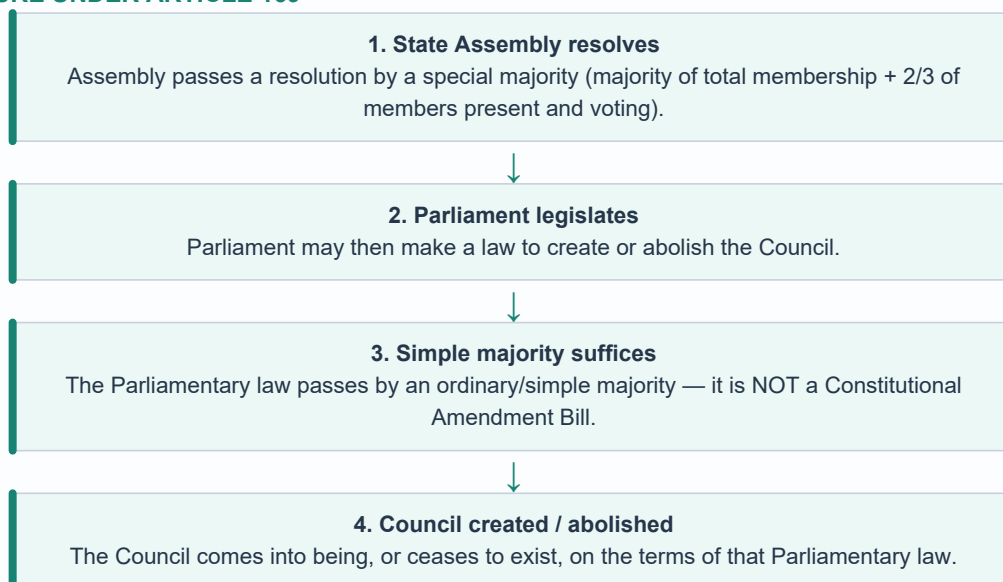
GS-II Polity -
Article 169

NEWS TRIGGER

Proposals to create or abolish Legislative Councils keep resurfacing in various states, making Article 169 a recurring procedural question.

COUNCILS CREATED, ABOLISHED, REVIVED



PROCEDURE UNDER ARTICLE 169**STATIC THEORY**

- Article 169 is the constitutional route for altering a state's bicameral status; it operates entirely through ordinary parliamentary legislation, not Article 368.
- Tamil Nadu's 2010 Legislative Council Act was passed by the state assembly's resolution route but the Union government never brought it into force.

MEMORY HOOK

Article 169 = Assembly special majority -> Parliament simple majority.

MUST-KNOW FACTS

1. The state Assembly's resolution requires a special majority, not a simple one.
2. Parliament's resulting law needs only a simple/ordinary majority.
3. Andhra Pradesh is the clearest example of the full cycle: created, abolished, and revived.

UPSC TRAPS

WRONG: Creating/abolishing a Council is a Constitutional Amendment under Article 368.

CORRECT: It is an ordinary law of Parliament passed by simple majority, following the state Assembly's special-majority resolution.

WRONG: Once abolished, a Council can never be revived.

CORRECT: Andhra Pradesh's Council was abolished in 1985 and revived in 2007.

MAINS ANGLE

Article 169 shows the Constitution treating the second chamber as a matter of state convenience rather than federal principle — contrast this with the entrenched, permanent character of the Rajya Sabha.

STUDY LINK

Polity -> Article 169 | Federalism -> State autonomy in institutional design

HIGH**3. Legislative Assembly: Composition and Strength**

GS-II Polity -
Vidhan Sabha

NEWS TRIGGER

Seat-strength questions for small states and the frozen delimitation timeline are recurring reference points in state-legislature discussions.

INTRO & ORIGIN

The Legislative Assembly is directly elected on the basis of universal adult franchise. Its normal strength band is 60 to 500 members, but several small states operate under special constitutional or statutory floors.

KEY DATA

State / Provision	Assembly strength	Basis
Sikkim	32	Special statutory arrangement (36th Amendment, 1975)
Goa	40	Special statutory minimum
Mizoram	40	Special statutory minimum (Article 371-G)
General constitutional floor	60 (minimum), 500 (maximum)	Article 170, normal range for most states

STATIC THEORY

- Figures such as 30, 40 or 46 that appear in special Articles are constitutional minima for those states, not necessarily today's actual Assembly strength.
- The Governor's power to nominate an Anglo-Indian member to the Assembly lapsed with the 104th Amendment.
- Readjustment of seats remains deferred until the relevant figures of the first census taken after 2026 are published (84th Amendment); SC/ST reservation of seats continues to be based on population ratio in the meantime.

MEMORY HOOK

60-500 is the normal band; special Articles set separate floors for small states like Sikkim, Goa and Mizoram.

MUST-KNOW FACTS

1. Assembly members are directly elected by universal adult franchise.
2. The Anglo-Indian nomination power (Governor, Assembly) lapsed under the 104th Amendment.
3. Delimitation/readjustment does not begin automatically in 2026 — it awaits the first post-2026 census figures.

UPSC TRAPS

WRONG: Every state's Assembly strength must fall strictly between 60 and 500.

CORRECT: Special Articles (e.g. for Sikkim, Goa, Mizoram) set separate statutory/constitutional floors below 60.

WRONG: Delimitation based on population will automatically apply from 2026.

CORRECT: It is deferred until figures from the first census taken after 2026 are published — there is no automatic 2026 delimitation.

MAINS ANGLE

Link the frozen delimitation debate to the women's reservation sequencing question — both depend on the same post-2026 census trigger, not on any fixed calendar year.

STUDY LINK

Polity -> Delimitation | Elections -> Article 170
| Women's Reservation Act

HIGH

4. Legislative Council: The 1/3-1/12-1/12-1/3-1/6 Formula

GS-II Polity -
Vidhan Parishad

NEWS TRIGGER

Debates on reforming graduate and teacher constituencies revive attention on the Council's unusual, partly-nominated composition.

WHO ELECTS/NOMINATES THE COUNCIL

Legislative Council (5/6 elected + 1/6 nominated)

1/3 Elected by members of local bodies	1/12 Elected by graduates (3 years' standing)
1/12 Elected by teachers (3 years' standing)	1/3 Elected by MLAs from non-members
1/6 Nominated by the Governor (literature, science, art, cooperative movement, social service)	

KEY DATA

Fraction	Electorate / mechanism
1/3	Members of local bodies in the state
1/12	Graduates of 3 years' standing
1/12	Teachers of 3 years' standing
1/3	Elected by MLAs, from persons who are not members
1/6	Nominated by the Governor

STATIC THEORY

- Council members are elected/nominated indirectly, using the single transferable vote (STV) system of proportional representation for the elected fractions.
- This heterogeneous composition — local bodies, graduates, teachers, MLAs and Governor's nominees — is deliberately designed to bring in experience and expertise absent from a purely popular chamber.

MEMORY HOOK

1/3 - 1/12 - 1/12 - 1/3 - 1/6: local bodies, graduates, teachers, MLAs, Governor.

MUST-KNOW FACTS

1. Council strength is capped at max 1/3 of the Assembly and floored at min 40.
2. 5/6 of the Council is indirectly elected; 1/6 is nominated by the Governor.
3. Council elections use the STV proportional representation method.

UPSC TRAPS

WRONG: Council members are directly elected like Assembly members.

CORRECT: They are indirectly elected (5/6) or nominated (1/6) — never directly elected by voters.

WRONG: Maximum Council strength is 1/3 of the Assembly with a minimum of 60.

CORRECT: The minimum is 40, not 60.

MAINS ANGLE

Evaluate whether the graduate and teacher constituencies still serve their original purpose of bringing specialised opinion into the legislature, or whether they have become vehicles for ordinary party politics.

STUDY LINK

Polity -> Representation of the People Act |
Elections -> STV system

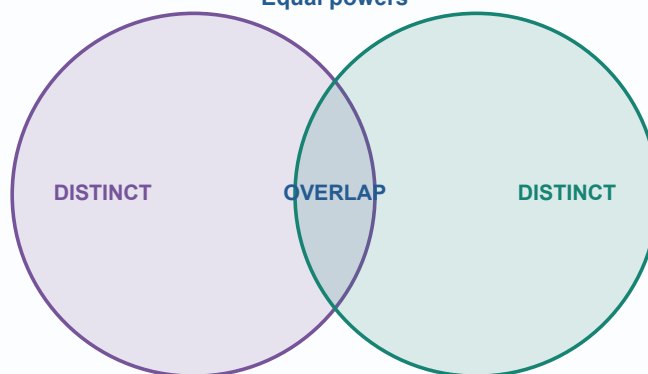
HIGH

5. Council vs Assembly: Where Powers Are Equal, Where They Are Not

GS-II Polity -
Legislative
Powers

NEWS TRIGGER

Whenever a state Council delays or debates a bill, commentary invariably returns to how limited its formal powers are compared with the Assembly.

COUNCIL-ASSEMBLY POWER COMPARISON**Assembly-only powers****Equal powers****Council's limited role****Assembly-only powers**

- Passes and can reject money bills
- Can remove the Council of Ministers by no-confidence
- Votes on demands for grants
- Sole House whose confidence CoM depends on

Equal powers

- Ordinary bills (subject to Council's delay power)
- Approving ordinances
- Choosing ministers via Assembly majority (Council has no say here)
- Considering reports of constitutional bodies

Council's limited role

- Can only recommend changes to a money bill, in 14 days
- Can delay an ordinary bill for a maximum of 4 months (3+1)
- Cannot vote for grants or move no-confidence
- Its existence itself depends on the Assembly (Article 169)

The Council shares ordinary legislative business with the Assembly but has no financial or confidence-vote powers.

STATIC THEORY

- The Council can only recommend changes to a money bill and must return it within 14 days; the Speaker of the Assembly certifies whether a bill is a money bill.
- On an ordinary bill, the Council's maximum delaying power is 4 months (3 months at first consideration + 1 month after reconsideration) — after which the bill is deemed passed in the form approved by the Assembly.
- The Council cannot vote demands for grants and cannot move or pass a no-confidence motion — the Council of Ministers is collectively responsible only to the Assembly.

MEMORY HOOK

Council = money bill 14 days, ordinary bill max 4 months, no confidence vote, no grants vote.

MUST-KNOW FACTS

1. Money bills can only originate in the Assembly.
2. The Council's maximum delay on an ordinary bill is 4 months (3+1).
3. The Council cannot pass a no-confidence motion against the ministry.

UPSC TRAPS

WRONG: The Legislative Council can reject a money bill outright.

CORRECT: It can only recommend changes and must return the bill within 14 days.

WRONG: The Legislative Council functions as a revising chamber like the Rajya Sabha.

CORRECT: It is only a dilatory/advisory chamber; it lacks the federal character and co-equal powers of the Rajya Sabha.

MAINS ANGLE

Distinguish the Council's weak, dilatory role from the Rajya Sabha's stronger, federally-grounded role — this distinction is a frequent source of UPSC confusion and a strong comparative answer point.

STUDY LINK

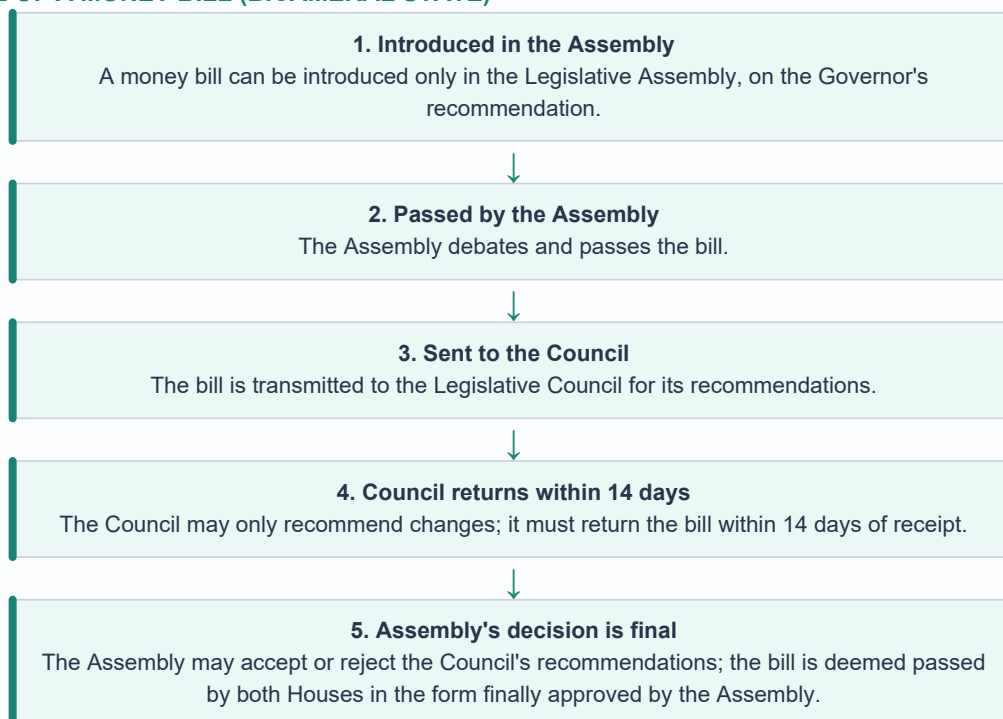
Polity -> Parliament -> Rajya Sabha powers | Money Bill procedure

HIGH

6. Money Bill Procedure in the State Legislature

GS-II Polity -
Money Bill
Procedure

PASSAGE OF A MONEY BILL (BICAMERAL STATE)



STATIC THEORY

- The Speaker of the Legislative Assembly certifies whether a particular bill is a money bill, and that certification is final.
- If the Council fails to return the bill within 14 days, the bill is deemed to have been passed by both Houses in the form it was passed by the Assembly.

MEMORY HOOK

Money bill: Assembly only -> Council 14 days to recommend -> Assembly's word is final.

MUST-KNOW FACTS

1. Only the Assembly can introduce a money bill.
2. The Council has a strict 14-day window to return a money bill with recommendations.
3. The Speaker's certification of a bill as a money bill is final and cannot be questioned.

UPSC TRAPS

WRONG: The Governor can introduce a money bill directly in the Council.

CORRECT: A money bill can be introduced only in the Assembly, on the Governor's prior recommendation.

WRONG: If the Council stays silent, the money bill lapses.

CORRECT: If the Council does not return it in 14 days, the bill is deemed passed as approved by the Assembly.

MAINS ANGLE

Use the money bill procedure to show how financial control is constitutionally concentrated in the directly elected Assembly, reinforcing responsible government at the state level.

STUDY LINK

Polity -> Money Bill | Parliament -> Article 110 (Union parallel)

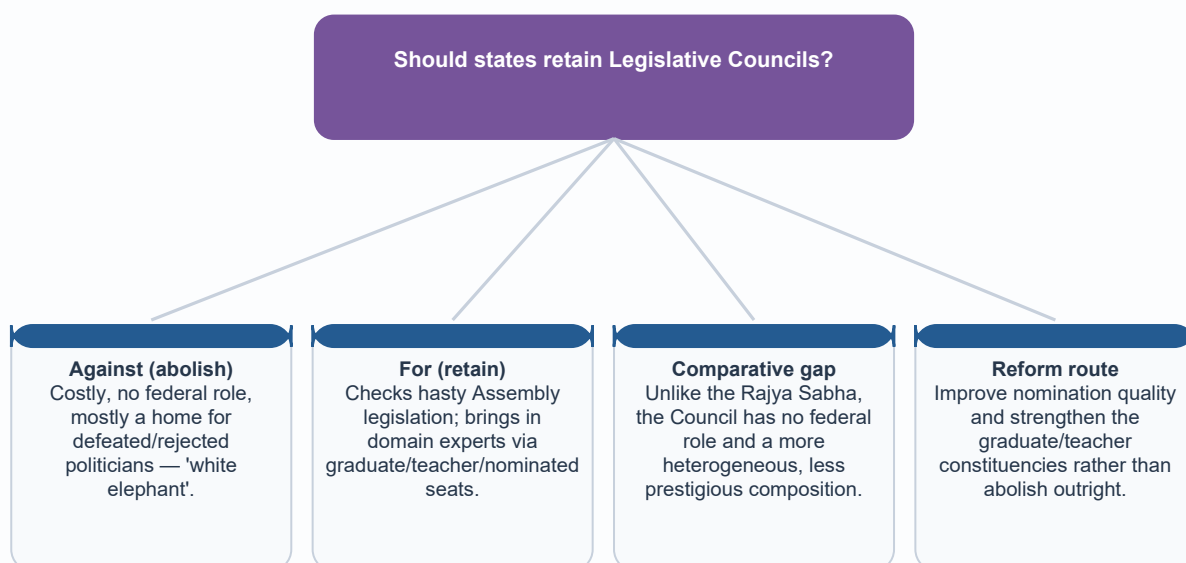
HIGH

7. Is the Legislative Council a 'Costly Ornamental Luxury'?

GS-II Polity -
Mains Debate

NEWS TRIGGER

Whenever a state proposes abolishing its Council to save costs, the classic 'ornamental luxury vs valuable check' debate resurfaces.

MAINS DEBATE: RETAIN, REFORM OR ABOLISH THE COUNCIL?

STATIC THEORY

- Critics call the Council a 'costly ornamental luxury' or 'white elephant' because it cannot check the executive through a confidence vote and has no financial powers.
- Supporters argue it checks hasty legislation and represents expert and local-body opinion that a purely partisan Assembly might overlook.

MEMORY HOOK

Council debate = cost & powerlessness vs expertise & revision.

MUST-KNOW FACTS

1. The Council has no federal role, unlike the Rajya Sabha, since states are unitary units internally, not federations of regions.
2. The Council's composition is more heterogeneous and, critics say, less prestigious than the Rajya Sabha's.

UPSC TRAPS

WRONG: The Council and the Rajya Sabha serve an identical constitutional purpose.

CORRECT: The Rajya Sabha represents the federal element and has real legislative/financial co-equality (subject to money bill limits); the Council has neither.

MAINS ANGLE

Structure a balanced answer: state the utility case (checks, expertise), state the cost/powerlessness critique, then conclude with a reform-oriented middle path rather than an absolute verdict.

STUDY LINK

Polity -> Rajya Sabha comparison |
Governance -> Institutional reform

HIGH**8. Duration, Retirement and the Permanent-Chamber Design**

GS-II Polity -
Tenure Rules

KEY DATA

Feature	Legislative Assembly	Legislative Council
Character	Dissolvable body (like the Lok Sabha)	Permanent body, never fully dissolved (like the Rajya Sabha)
Term of a member	5 years, subject to earlier dissolution	6-year term per member
Renewal	Entire House re-elected after dissolution/expiry	1/3 of members retire every 2 years
Effect	Reflects the confidence of the electorate at one point	Continuity of experience across electoral cycles

STATIC THEORY

- The Assembly mirrors the Lok Sabha's dissolvable, 5-year design, tying its life to the government's political fortunes.
- The Council mirrors the Rajya Sabha's permanent design, with one-third of its members retiring every two years, ensuring the body is never entirely reconstituted at once.

MEMORY HOOK

Assembly = Lok Sabha twin (5 yrs, dissolvable); Council = Rajya Sabha twin (permanent, 1/3 every 2 yrs).

MUST-KNOW FACTS

1. Assembly term: 5 years, extendable only during a proclaimed Emergency.
2. Council member's term: 6 years, with 1/3 retiring every 2 years.
3. The Council, as a body, is never dissolved.

UPSC TRAPS

WRONG: The Legislative Council is dissolved along with the Assembly.

CORRECT: The Council is a permanent body; only the Assembly is dissolvable.

MAINS ANGLE

Use the Assembly-Council duration contrast as a ready-made comparative point whenever a question asks to compare Union and state legislative institutions.

STUDY LINK

Polity -> Lok Sabha / Rajya Sabha tenure |
Parliament -> Continuity

HIGH

9. Frozen Delimitation and the Post-2026 Census Trigger

GS-II Polity -
Delimitation**NEWS TRIGGER**

Post-2026 census and delimitation planning is an active policy question directly tied to future state Assembly seat numbers.

KEY DATA

Question	Verified position
Does readjustment begin automatically in 2026?	No — it remains deferred until the relevant figures of the first census taken after 2026 are published (84th Amendment).
What is the current basis for SC/ST seat reservation?	Population ratio, using presently applicable figures, pending the deferred readjustment.
Is there a fixed calendar date for delimitation?	No fixed date is verified; it is tied to publication of post-2026 census figures, not a specific year.

STATIC THEORY

- The 84th Amendment froze Lok Sabha and state Assembly seat numbers, and readjustment of seats/constituencies is linked to the first census taken after 2026, not to the 2026 date itself.
- This freeze is closely watched alongside the women's-reservation sequencing question, since both are triggered by the same post-2026 census milestone.

MEMORY HOOK

2026 is not the delimitation trigger — the FIRST CENSUS AFTER 2026 is.

MUST-KNOW FACTS

- 1. Seat readjustment is deferred until post-2026 census figures are published.
- 2. SC/ST reservation of seats continues on a population-ratio basis in the meantime.
- 3. There is no automatic 2026 delimitation exercise.

UPSC TRAPS

WRONG: Delimitation of Assembly seats will automatically happen in 2026.

CORRECT: It is deferred until figures from the first census taken after 2026 are published.

MAINS ANGLE

Connect frozen delimitation to concerns about representational imbalance between high-fertility and low-fertility states if seats are eventually reallocated purely by population.

STUDY LINK

Polity -> 84th Amendment | Elections -> Delimitation Commission

HIGH

10. Concept Links: State Legislature in the Wider Constitutional Map

GS-II Polity -
Revision & Links

STATIC THEORY

- The state legislature does not operate in isolation — its powers interact directly with the Governor's assent function, the President's Rule mechanism, and the Anti-Defection Law.

MEMORY HOOK

State legislature links: Governor's assent, President's Rule, Article 169, Anti-Defection.

MUST-KNOW FACTS

- 1. The Governor's assent function (Art 200) is the gateway for every Assembly-passed bill to become law.
- 2. President's Rule under Article 356 directly affects the Assembly's existence or functioning.

UPSC TRAPS

WRONG: The Anti-Defection Law applies only to Assembly members.

CORRECT: It applies to members of both Houses of a bicameral state legislature, including the Council.

HOW THE STATE LEGISLATURE CONNECTS TO OTHER TOPICS

Core Concept	Linked Concept	Why It Matters
Assembly dissolution	President's Rule (Article 356)	Assembly may be dissolved or kept in suspended animation when President's Rule is imposed.
Bill passage	Governor's assent (Article 200)	No Assembly-passed bill becomes law without the Governor's assent, reservation, or return for reconsideration.
Council creation/abolition	Article 169	The only route to alter a state's bicameral status, via ordinary parliamentary law.
MLA disqualification	Anti-Defection Law (Tenth Schedule)	Applies to members of both the Assembly and, with adaptation, the Council.
Money bill certification	Speaker's role	Mirrors the Lok Sabha Speaker's money-bill certification power at the Union level.

MAINS ANGLE

In any Mains answer on state legislatures, show awareness of these cross-links (Governor, President's Rule, defection law) to demonstrate an integrated understanding of state governance.

STUDY LINK

Polity -> Governor | President's Rule |
Anti-Defection Law

HIGH**11. Revision Capsule: State Legislature**

GS-II Polity -
Final Revision

STATIC THEORY

- Article 168: a state legislature = Governor + Assembly (+ Council, if bicameral).
- Article 169: route to create/abolish a Council — special majority in the Assembly, then simple majority in Parliament; not a Constitutional Amendment.
- Assembly: directly elected, 5-year term, normally 60-500 members (special floors for small states).
- Council: 5/6 indirectly elected (STV) + 1/6 nominated by Governor; permanent body, 1/3 retire every 2 years; max 1/3 of Assembly, min 40.
- Council powers: equal on ordinary bills (subject to a 4-month delay power) and ordinances; no money-bill power beyond recommendation in 14 days; cannot vote grants or pass no-confidence.
- Only 6 states are bicameral: Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra, Karnataka.
- Delimitation/readjustment is deferred to the first census after 2026 — no automatic 2026 exercise.

MEMORY HOOK

168 = structure | 169 = create/abolish Council | 5/6+1/6 = Council composition | 4 months = max delay.

MUST-KNOW FACTS

1. CoM is responsible only to the Assembly, never to the Council.
2. 6 bicameral states: KATBUM (Karnataka, AP, Telangana, Bihar, UP, Maharashtra).
3. Council members are elected by STV proportional representation.
4. Readjustment of seats stays deferred until the first census taken after 2026 is published.

UPSC TRAPS

WRONG: The Legislative Council can be treated as a mini Rajya Sabha.

CORRECT: It lacks the Rajya Sabha's federal role and near-equal legislative/financial powers — it is only a dilatory chamber.

WRONG: State bicameralism is fixed permanently by the original Constitution.

CORRECT: It can be altered anytime via Article 169's Assembly-resolution-then-Parliament-law route.

MAINS ANGLE

For any question on state legislatures, anchor the answer in three points: constitutional design (Art 168-169), the Assembly-Council power asymmetry, and the ongoing reform/delimitation debate.

STUDY LINK

Polity -> Chapter 33, State Legislature -> Full revision